

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X
DIANE C. DESOUSA
and THOMAS E. DESOUSA,
 Plaintiffs,
 -against-

Index No: 600371/2021

REPLY AFFIRMATION IN
SUPPORT OF SUMMARY
JUDGMENT

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,
 Defendants.
 -----X

JASON M. BARBARA, an attorney duly licensed to practice before the Courts of this State, hereby affirms the truth of the following under the penalties of perjury:

1. I am the attorney for the Defendant **RICHARD A. CALVAGNO II**, in the above captioned action and as such, am fully familiar with all the facts of this matter. I submit this affirmation in reply to Plaintiffs' opposition to Defendant's motion for summary judgment.

2. At the outset I note that Plaintiff's opposition appears¹ to be supported by only the affirmation of their counsel who has no personal knowledge of the facts he attests to and as such, is insufficient to defeat a motion for summary judgment. *See, Capuano v Tishman Const. Corp.*, 37 Misc 3d 1206(A) [Sup Ct 2011], affd. 98 AD3d 848 [1st Dept 2012] wherein the summary judgment was granted:

“[T]he proponent of a summary judgment motion must make a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact. Failure to make such prima facie showing requires denial of the motion, regardless of the sufficiency of the opposing papers.” *Alvarez v. Prospect Hosp.*, 68 N.Y.2d 320, 324 (1986). There is no requirement that the proof for said motion be submitted in affidavit form, rather, the requirement is that the evidence proffered be in admissible form. *Muniz v.*

¹ Following the preparation of this affirmation, your affiant noted that counsel had attached to the newly introduced affidavits of neighbors, commencing, page 449 of his 460 page submission, the affidavits of Plaintiff's attesting to the “explosions” of Defendant's car in the morning. It is a disturbing practice. Moreover, and although the affidavits do (wastefully) repeat certain of the factual allegations made by counsel, there are other factual allegations that Plaintiffs have failed to address or attest to the truth of.

Bacchus, 282 A.D.2d 387 (1st Dept.2001). Accordingly, affirmations from attorneys having no personal knowledge of the facts are not evidence and offer nothing more than hearsay. *Reuben Israelson v. Sidney Rubin*, 20 A.D.2d 668 (2nd Dept.1964); *Erin Federico v. City of Mechanicville*, 141 A.D.2d 1002 (3rd Dept.1988).

Once a movant meets his initial burden, the burden shifts to the opponent, who must then produce sufficient evidence, also in admissible form, to establish the existence of a triable issue of fact. *Zuckerman v. City of New York*, 49 N.Y.2d 557 (1980). When deciding a summary judgment motion the role of the Court is to make determinations as to the existence of bonafide issues of fact and not to delve into or resolve issues of credibility. *Knepka v. Tallman*, 278 A.D.2d 811 (4th Dept.2000).

See also, *Zuckerman v City of New York*, 49 NY2d 557, 404 NE2d 718, 427 NYS2d 595 (1980), and *Israelson v Rubin*, 20 AD2d 668, 669 [2d Dept 1964], *affd.*, 14 NY2d 887 [1964] “Since it does not appear that defendant's attorney has any personal knowledge of the facts, his affidavit has no probative value and should be disregarded (*Cohen v. Pannia*, 7 A.D.2d 886, 181 N.Y.S.2d 220; *Barnet v. Horwitz*, 278 App.Div. 700, 103 N.Y.S.2d 105). Defendant having failed to show either by his own affidavit or by the affidavit of a person with knowledge that he (the defendant) has a bona fide defense to the third and fourth causes of action, summary judgment **87 should be granted to plaintiff thereon (CPLR Rule 3212; *Schillinger v. North Hills Realty Corp.*, 15 A.D.2d 539, 222 N.Y.S.2d 972, *affd.* 11 N.Y.2d 1044, 230 N.Y.S.2d 33; *Kramer v. Harris*, 9 A.D.2d 282, 193 N.Y.S.2d 548; *Dwan v. Massarene*, 199 App.Div. 872, 192 N.Y.S. 577).”

3. Beyond that, the Plaintiff's counsel has not denied or corrected the fatal error of its pleadings but instead excused them as an “inadvertent” error. With all due respect, misidentifying the owner of the property that forms the basis of Plaintiff's complaint is not *de minimus*, and furthermore, as Defendant has raised this complaint in its 2021 Verified Answer and nearly every motion made since the commencement of this action, Plaintiff's decision to ignore same (thus constituting a near defiant refusal) for three (3) years running is in fact inexcusable and creates a

defective record and grounds for dismissal, *infra* at page 18, referring to Plaintiff's own citation to Broxmeyer v United Cap. Corp., 79AD3d 780 [2nd Dept 2010] that commands the requisite property interest be pled.

4. As demonstrated in support of the underlying motion, Plaintiff failed to present even a single triable issue of fact to sustain any one of the causes of action the Complaint pleads.

5. In opposition, not to mention all rules of evidence and procedure, AFTER the completion of discovery (thus denying Defendant the opportunity to depose or inquire into) Plaintiff offers the never before provided affidavits of third parties to suggest the existence of a material issue of fact. As demonstrated below, even these late submissions (should they be acceptable) do not provide proof of any triable issue of fact.

First Cause of Action: Private Nuisance

6. Opposing Defendant's ample illustration of the insufficiency of proof offered on Plaintiff's first cause of action for private nuisance, counsel manipulatively concludes that Defendants conceded Plaintiff's complaint by acknowledging that the Dodge Hellcat is a known to be a loud, (but perfectly legal), car. Defendant made no such concession and in fact notes that the Dodge vehicle in question meets all standards required for its operation on public streets. So too does Plaintiff admit that concession as his complaint argues that the Defendant somehow "modified" his exhaust system to make it louder than legal limits permit; allegations that the Defendant denied and Plaintiff has still failed to offer any proof of.

7. Despite having deposed two (2) third party witnesses from the car dealership where the car was purchased, service and inspected (that notably Defendant works with; it being Defendant's position that, and as these depositions that **did NOT confirm** any modifications to the vehicle or any illegal decibel readings or noise limits, the Plaintiffs acted maliciously to embarrass the Defendant and compromise his employment, abusing the legal process in furtherance of the

vendetta he carries for Defendant) **Plaintiffs have to date, still failed to obtain any evidentiary support for their unsupported “theory that Defendant modified the car to create noise levels in excess of legal limits.”**²

8. In fact, the Plaintiff has not even accurately identified legal limits and instead cites VTL §386 misleading and misquoting the statute that is meant to address vehicles over 10,000 lbs (the Dodge website reports the car in question at 4,415 lbs.) The citation³ includes three (3) Tables of “MAXIMUM ALLOWABLE A WEIGHTED SOUND LEVELS” based upon speeds over and under 35 miles per hour and reports acceptable levels of up to “90dB(A)” over 35 miles per hour and up to “86dB(A)” over 35 miles per hour.

9. The photographs of the unreliable readings the Plaintiff testified he took with a machine under his exclusive control, were all under 80; the highest, counsel testifies, affirmation ¶13, being 79.9 and thus **all within the range of acceptable levels under the statute Plaintiff cites.**

10. Moreover, the Plaintiff failed to produce any noise⁴ citation made by the police whom he complained to and summoned to the street to monitor the noise level.

² In ¶19 of his affirmation, counsel pontificates as to the authenticity of a letter prepared by Westbury Jeep (upon which Plaintiffs deposed its author and service director) that stated that the car had not been modified. He suggests that their depositions did not prove that the car had NOT been modified (and refers to page 23 of Exhibit H again misquoting the testimony that only said that he never measured the decibels coming out of an exhaust when completing a NYS safety inspection. Respectfully, it is the burden of the Plaintiff at this juncture to prove that there are triable issues of fact, not supposition. **Plaintiff has completed discovery and been unable to prove the car was modified.**

³ Reproduced herein as Exhibit “K”

⁴ In ¶16 of his affirmation counsel misleadingly refers to Plaintiff’s testimony. He annexes (notably for the first time as the reports were not provided in response to discovery demands) “two police reports from Mr. DeSousa” as Exhibit “E” Neither one of the reports cites a finding of excessive noise. Counsel thereafter refers to Mr. DeSousa’s testimony to suggest that, upon Plaintiff’s complaints, the police “parked up the block to catch Calvagno in the act on at least one occasion as was ticketed” misleading this reader. In fact, Plaintiff admitted that the police did NOT ticket Defendant for excessive noise and testified:

Q. By the way, do you know how many times you called the police?

A. I don’t know Once or twice

Q. Did the police take any action?

A. Yes .

Q. What did they do ?

A. They went up the block and waited

Q. And did what?

11. Having thus:

A. failed to confirm or provide any proof that the Defendant modified his exhaust system (with the Plaintiff's third party witnesses at the dealership actually testifying that Defendant had NOT modified the exhaust system);

B. Failed to offer the independent third party expert report (or for that matter his own readings) confirming readings in excess of legal limits; and

C. Failed to have even the police whom Plaintiff summoned, confirm excessive noise from Defendant's car or cite the Defendant (and similarly failed to identify any citations from other officials Plaintiff called to the property on other complaints relating to the alleged but again unsupported, allegation of commercial use of the property or debris),

Plaintiffs have wholly and completely failed to provide any triable issue of fact to support any of his nuisance complaints including that for private nuisance.⁵

Public Nuisance

12. Again your affirmant notes that Plaintiff has failed to address or distinguish the controlling law cited in support of Defendant's underlying motion and, in this case providing that **"A public nuisance is a violation against the State and is subject to abatement or prosecution by the proper governmental authority"** (*id.* at 292, 727 N.Y.S.2d 49, 750 N.E.2d 1097; *see Copart Indus. v. Consolidated Edison Co. of N.Y.*, 41 N.Y.2d at 568, 394 N.Y.S.2d 169, 362

A. Issued a ticket.

Q. What kind of ticket?

A. I don't know

⁵ To spare dismissal of Plaintiff's underlying Complaint, post discovery, Plaintiffs improperly introduce herein NEW affidavits and exhibits he did not share in the since completed discovery process. They include, among other things, Invoices from an exterminator dated May 11, 2020, 3/23/21 6/28/22 2/15/23 and 2/30/24 reporting what appears to be annual service any home near the water might require or contract for.

In ¶39-Plaintiff's January 8, 2021 Complaint alleges that "this trash may attract and harbor insects and vermin. As previously noted, **this property is on the waterfront and as such is particularly susceptible <sic> to vermin infestation.**"

¶¶40-41 the conditions are "ripe for insect/vermin infestation".

In other words, and at the time of the Complaint in 2021 that notes only the *potential* for infestation, the home was already being treated (May 11, 2020 Invoice) and thereafter treated annually as the area is susceptible due to is location on the waterfront and the Plaintiff had annual service which, if credible, included service on a date that does not even exist, 2/30/2024!

N.E.2d 968; *see also* Penal Law § 240.45[1]). A public nuisance is actionable by a private person only where the person suffered special injury beyond that suffered by the community at large (*see 532 Madison Ave. Gourmet Foods v. Finlandia Ctr.*, 96 N.Y.2d at 292, 727 N.Y.S.2d 49, 750 N.E.2d 1097; *Baity v. General Elec. Co.*, 86 A.D.3d 948, 951, 927 N.Y.S.2d 492).” Monaghan v Roman Catholic Diocese of Rockville Centre, 165 AD3d 650, 85 NYS3d 475 [2nd Dept 2018]. Emphasis supplied.

13. Instead, he argues that his Complaint alleges he experienced “special harm from Defendant’s conduct or omissions that are different in kind from those experienced by the public at large” (§57) and thus an exception to the law.

14. It is not, and he did not. Even after the completion of discovery, the Defendant has failed to provide proof of any special harm from Defendant’s conduct or omissions that are different in kind from those experienced by the public at large.

15. In fact, and at deposition, the **Plaintiffs actually admitted that they had not suffered any “special harm.”** Specifically, Mrs. DeSousa conceded in her August 10, 2023 deposition, at pages 12- 13 that she is not being treated by a psychiatrist, psychologist or any other therapist and that she does not take any prescription drugs for any other ailments. Similarly Mr. DeSousa admitted at his May 3, 2023 deposition, P. 44 that although his Complaint complains of “sleeplessness and other stress related ailments” he was not prescribed any medication for the “upset and stomach nausea” he testified too, nor had he been prescribed any medication for “sleeplessness or other stress related ailments.” At page 62 of his May 2023 deposition, Plaintiff candidly admitted that he is not being treated with any medication but referenced treatment he began with psychologist RONALD COHEN on March 14, 2022 (ie more than a year *after* the commencement of the underlying action. He did not offer Dr. COHEN’s May 2022 letter he

clearly had in its possession (thus denying Defendant the opportunity to inquire or impeach) but instead, and for the very first time, offers it herein in opposition to this motion for summary judgment. The letter references Mr. DeSousa's chronic cardiovascular disease" and a "history of congestive heart failure and chronic atrial fibrillation." Dr. COHEN is a psychologist, unqualified to testify to cardiac issues and notably Plaintiff has failed to offer any letter or support from a cardiologist identifying any special damages Plaintiff has suffered since the commencement of this action, nevertheless linking it to the volume of Defendant's complaints or Plaintiff's other grievances about Plaintiff's lifestyle. The belated introduction of Dr. COHEN's letter fails to identify any "special damages" or raise any triable issue of fact to support Plaintiff's January 2021 Complaint of "special damages" for which the Plaintiff admits he waited 14 months to seek treatment and takes no medication.

16. Beyond that, Plaintiff also offers, again for the first time, affidavits from two (2) other neighbors (ie the community at large) complaining of Defendant's car, thus and perhaps disingenuously conceding that Plaintiff's did not suffer "special injury beyond that suffered by the community at large." Defendant denies the otherwise unsupported complaints Plaintiffs have made (and that the police and other summoned officials have failed to cite Defendants for) but even if he hadn't, a cause of action for PRIVATE nuisance cannot be maintained as a matter of law because:

"[W]here the claimed injury is common to the entire community, a private right of action is barred" (*Wheeler v. Lebanon Val. Auto Racing Corp.*, 303 A.D.2d 791, 793, 755 N.Y.S.2d 763 [2003] [internal quotation marks and citation omitted], *lv denied* 100 N.Y.2d 507, 763 N.Y.S.2d 813, 795 N.E.2d 39 [2003]). Moreover, we find without merit plaintiffs' claim that they suffer a special damage in that they will suffer liability as a result of any collision that might occur. Even were we to conclude that this claim is not completely speculative, the injury proposed by plaintiffs is not different in kind, but merely in degree, to that which may be suffered by the public as a whole. As such, it does not qualify as a "special injury" so as to allow plaintiffs to bring a public nuisance cause of action (*see id.*).

Accordingly, this cause of action was properly dismissed.” Duffy v Baldwin, 183 AD3d 1053 [3d Dept 2020]

17. So too, herein, must Plaintiffs’ second cause of action be properly dismissed as a matter of law.

Nuisance “*Per Se*”

18. There is a certain irony that cannot be ignored in Plaintiff’s pleadings. He presents affidavits from his friends to support his complaints that they too objected to Defendant’s driving (thus defeating his claim of “special damages” unique to only him and not the community) in his unsustainable cause of action for private nuisance, and argues in opposition to summary judgment on public nuisance, (affirmation ¶17) that even if the noise was found not violate the local village court, the court must still deny summary judgment because the conduct adversely affected the enjoyment of his home (*citing Broxmeyer v United Cap. Corp.*, 79AD3d 780 [2nd Dept 2010] which also states that if all elements are sufficiently established to defeat a motion for summary judgment, “[E]xcept for the issue of whether the plaintiff has the requisite property interest, each of the other elements is a ques *783 tion for the jury, unless the evidence is undisputed” (*Weinberg v Lombardi*, 217 AD2d 579 [1995])).” Broxmeyer v United Capital Corp., *id.*, 782-83 thus making relevant the Plaintiff’s refusal to correct the repeatedly complained of Complaint and its “erroneous recitation of the requisite property interests.”)

19. Acknowledging that the police have refused to cite the Defendant for excessive noise and claiming a failure to prove a violation of local laws does not bar summary judgment, Plaintiff contrarily suggests that violation of a local law establishes a nuisance *per se*. With all due respect, which is it?

20. In opposition to Defendant’s request to dismiss the third cause of action for nuisance *per se* counsel incorrectly (and contradictorily) concludes that Plaintiffs “established that

Calvagno's conduct violates state and local law" (it didn't⁶) and is thus a nuisance *per se*. Curiously, he cites construction cases wherein a contractor is accused of "negligence" or nuisance in the erection of building sites, to support his insupportable argument. The cases include State v Fermenta ASC Corp, 238 AD2d 400 [2nd Dept 1997] wherein the Court affirmed a lower Court's order *dismissing* the causes of action for nuisance *per se* and public nuisance and the 1939 decision of Delaney v Philhern Realty Holding Corp., 280 NY 461, 465-66 [1939], an action for damages arising out of personal injuries due to the alleged fault of the contractor and subcontractor in claims for negligence and nuisance. The Court of Appeals therein found error in the lower Court's jury charge as to nuisance noting that:

" When the gravamen of the complaint is nuisance which arises out of negligence, then a jury should be charged that contributory negligence on the part of the plaintiff bars recovery. (*McFarlane v. City of Niagara Falls, supra.*) But **where the gravamen of the complaint is an absolute nuisance or a nuisance *per se*, that is a nuisance based on an act which is unlawful even if performed with due care, then a jury should be charged that something more than a mere want of ordinary care on the part of the plaintiff is required to prevent recovery.** (*Muller v. McKesson*, 73 N. Y. 195; *Lynch v. McNally*, 73 N. Y. 347.) The act of the plaintiff to prevent recovery must amount to being informed of the dangers in his path and then being willing to encounter them. **The principle is comprised within the old maxim, *volenti non fit injuria*, or 'one will not be heard to complain of results one has invited.'** (**[*466]** *Zurich G. A. & L. Ins. Co. v. Childs Co.*, 253 N. Y. 324, 327; *McFarlane v. City of Niagara Falls, supra*; *Smith v. Baker & Sons*, L. R. [1891] A. C. 325, 360; Harper on the Law of Torts, §§ 153, 193; Bohlen, Studies in the Law of Torts, pp. 514-521.)" Delaney v Philhern Realty Holding Corp., 280 NY 461, 465-66 [1939] Emphasis supplied.

Putting aside the Defendant's beliefs that this nuisance suit, itself a nuisance, is borne of Plaintiff's prejudice and hate, the deposition testimony of both parties included complaints of Plaintiff's

⁶ Again, Plaintiff failed to provide any credible third-party proof via police report, local authority or even the independent report of an expert, to support noise of trash violations. Further still, the "law" Plaintiff cites reports acceptable decibel levels in excess of Plaintiff's highest reading.

retaliatory harassment and conduct, yielding the results the Plaintiffs invited and that fail to provide any credible issue of material fact worthy of trial

Intentional Infliction of Emotional Distress

21. To spare its summary dismissal, Plaintiff relies upon the herein produced 2022 letter from his online psychologist whom he had then begun seeing, just two (2) months earlier (a marked fourteen (14) months *after* he filed his complaint including a cause of action for intentional infliction of emotional distress) to support his obligation to provide evidentiary proof of severe emotional distress. Again, this belatedly submitted letter (that Plaintiff denied Defendant the opportunity to inquire into) does not allege the Plaintiff suffers “severe emotional distress” or provide any causal link between the “psychological distress” the letter identifies Plaintiff as suffering, but rather identifies pre-existing conditions of chronic cardiovascular disease, congestive heart failure and chronic atrial fibrillation that was **not caused by the conduct complained of**. Claiming to have so severely suffered by utterly intolerable conduct, Plaintiff concedes that he waited fourteen (14) months AFTER filing his complaint before he ever visited a psychologist whose letter notes that treatment for Mr. DeSousa’s stress is available with “cognitive behavioral tools” and “self-relaxation solutions.”

22. With all due respect, the complaint at bar does not plausibly allege all requisite elements of the tort, and the “proof” improperly offered herein, after the completion of discovery, fails to demonstrate that the Defendant’s actions were **“so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.”**

Even read liberally, the complaint does not plausibly allege these elements. The standard for stating a valid claim of intentional infliction of emotional distress is “rigorous, and difficult to satisfy.” *Howell v. N.Y. Post Co.*, 612 N.E.2d 699, 702 (N.Y. 1993); *see also Ibraheem v. Wackenhut Servs., Inc.*, 29 F. Supp. 3d 196, 215

(E.D.N.Y. 2014) (“In New York, the tort of IIED is extremely disfavored.”). To succeed, a plaintiff must show that the defendant's actions were **“so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.”** *Howell*, 612 N.E.2d at 702 (quoting Restatement (Second) of Torts § 46 cmt. d (1965)). Indeed, “[a]ctions likely to be considered reprehensible by most people are not sufficient.” *DiRuzza v. Lanza*, 685 F. App'x 34, 37 (2d Cir. 2017) (applying New York law); *see also Chanko v. Am. Broad. Cos.*, 49 N.E.3d 1171, 1179 (N.Y. 2016) (concluding that a broadcaster's airing of recording of a patient's last moments of life “was not so extreme and outrageous” even though the conduct “would likely be considered reprehensible by most people”). Whether a plaintiff's allegations “may reasonably be regarded as so extreme and outrageous as to permit recovery is a matter for the court to determine in the first instance.” *Stuto v. Fleishman*, 164 F.3d 820, 827 (2d Cir. 1999); *see also Howell*, 612 N.E.2d at 702 (“**In practice, courts have tended to focus on the outrageousness element, the one most susceptible to determination as a matter of law.**”). *Friedman v Crown Hgts. Urgent Care Clinic*, 22-CV-979(EK)(JRC), 2022 WL 17415108, at *2 [EDNY Dec. 5, 2022] (emphasis added)

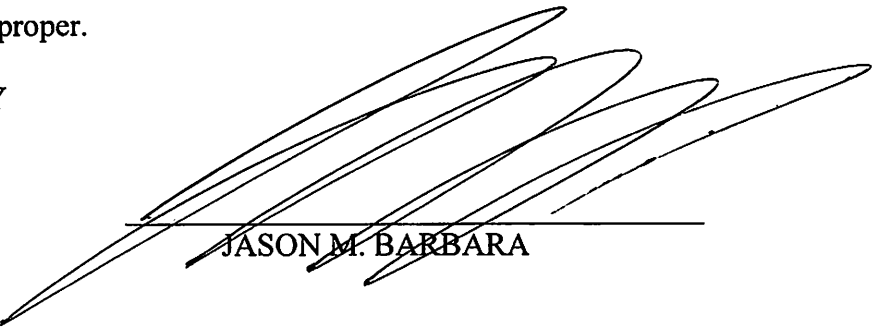
See also, LeClair v Raymond, 119CV0028BKSDJS, 2020 WL 5027278, at *15 [NDNY Aug. 25, 2020] “New York sets a high threshold for conduct that is ‘extreme and outrageous’ enough to constitute intentional infliction of emotional distress.” *Bender v. City of New York*, 78 F.3d 787, 790 (2d Cir. 1996). Conduct must be **“so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized society,”** *Stuto*, 164 F.3d at 827, and “[w]hether the alleged conduct is sufficiently outrageous enough to satisfy [this element] is a matter of law for a court to decide.” *Baez v. JetBlue Airways*, 745 F. Supp. 2d 214, 223 (E.D.N.Y. 2010). The Court agrees with Moving Defendants that Plaintiff has not alleged conduct that is **“so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency”** in the relevant time period. *Stuto*, 164 F.3d at 827. “

23. So too has this Plaintiff failed to allege or prove conduct that is so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency.

24. Having failed to present any genuine issue of material fact for this Court to consider, Defendants must be granted summary judgment as a matter of fact and law.

WHEREFORE, your affirmant respectfully asks this Court to grant to Defendant the relief requested in his annexed Order to Show Cause together with such other, further and different relief as to this Court may seem just and proper.

Dated: New Hyde Park, NY
June 24, 2024



JASON M. BARBARA